
Interview Details

_____ years old at the time of this interview, is a black female who is 5'8" tall, weighs 120 pounds, and had brown hair and brown eyes. _____ resides at _____ and is currently _____. _____ is not currently employed.

On March 18, 2015, _____ was interviewed at the CCRB.

On March 13, 2015, at approximately 1:35 p.m., _____ exited the L train at the Broadway Junction station in Brooklyn when some of her friends ran up to her and told her that he cousin, _____ and some other individuals were being arrested for something that had taken place on the platform. _____ was not present for the incident they were being arrested for and did not know what they were being arrested for. On this day, _____ was wearing black Jordan sneakers, black pants, a grey sweater, and a blue jacket. _____ went through the turnstiles and saw _____ and _____ being arrested by numerous officers near an MTA booth and the Transit Bureau District 33 (TBTD33) stationhouse. _____ tried to get whatever information she could, but the officers told her that they could not tell her anything because she was a minor. A crowd formed around the officers and the arrestees. _____ noted that many people exited the train to check on the arrestees. Both the arrestees and crowd were calm. _____ friend, _____ her aunt, _____, and _____ friend were present at the scene of the arrests. An officer (PO1) told _____ who was arm's length away from _____ that she was too close and told her to go through the emergency gate. PO1 told _____ that she would be arrested if she got any closer. _____ believed that PO1 was a sergeant. She did not see any stripes on his uniform, but she observed that he was giving commands to other officers. PO1, PO2, and a third officer walked _____ to the TBTD33 stationhouse. At least ten of the youths that had gathered to watch the arrests walked through the emergency gate as per PO1's orders. _____ asked PO1 if she could make a phone call before going through the gate and PO1 told her that she had to step back if she wanted to make a phone call. _____ complied and called her mother, _____, and her aunt, who told her to leave the area. _____ friend asked an officer standing by the emergency gate (PO3) if she could open the gate and PO3 said the gate was already open and told them that they just needed to pull it. _____ observed that PO3 had a key in the gate.

Approximately seven minutes after arriving at the scene of the arrests and one minute after the ten youths went through the emergency gate (they were all gone at this point), _____ and _____ walked through the gate. _____ intended to get on the train and go home. As _____ was halfway through the gate, an officer (PO4) approached her from behind, pushed her hand against the back of her head, slammed her head against the pole adjacent to the gate, and closed the gate against _____ left side, causing pain and a knot to her neck and back. PO4 held _____ head against the pole and said, "Pay your fare, bitch." _____ did not see PO4 at all and PO4 did not give her any commands prior to this point. _____ attempted to get away from PO4. She moved away from the gate and towards the turnstiles, which were approximately ten feet away from the gate. _____ mind was "all over the place." She attempted to get her MetroCard and go through the turnstile. She said to PO4, "You just did that and you're a cop?" and PO4 began to laugh. As _____ attempted to swipe her MetroCard through the turnstile, PO4 approached her from behind, pulled her hair (which was curly/wavy that day), shook her, and punched her in the back of her neck. PO4 did not do or say anything prior to this besides laugh. Five officers (PO5-PO9) ran out of the TBTD33 stationhouse, got in front of _____ (who was in front of the MTA booth), grabbed her arms and legs, and pushed her from behind. All five of these officers made contact with _____ fell to the floor and landed on her stomach. An officer (PO5) held _____ head against the ground. This was the only one of these five officers _____ was able to get a clear view of. _____ hands were on the outside of her body. She did not do anything with her arms besides hold on to her cell phone with her right hand. The officers "folded" _____ arms and legs, twisted her arms behind her back, and put a handcuff on one of her arms. The officers then stood her up and cuffed her other arm. _____ did not do anything with her body as the officers did this. She told the officers that she did not do anything wrong. _____ tried to tell the officers to stop and to get off of _____ but _____ was arrested as well.

The officers brought _____ to the TBTD33 stationhouse. _____ asked if she could call her mother and the officers told her that she could not. _____ did not get to call her mother at any point while she was in police custody. _____ was released before _____ friend called Ms. Funn and told her that _____ was arrested. PO1 acknowledged being present at the scene of the arrests and brought _____ to a room for juvenile arrestees. _____ asked for an ice pack because her wrists were in pain from her arm being twisted and handcuffed, but

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she was told that her injury was “not that serious.” While she was in “the office,” [REDACTED] heard officers use PO4’s name (PO Paradise) a lot. Ms. Funn arrived at the stationhouse and obtained PO4’s name from her shield when PO4 asked her for identification.

[REDACTED] was charged with fraud, assault, and disorderly conduct and she received a desk appearance ticket (DAT). She noted that she did not make physical contact with any officer at any point. The DAT was issued by PO Paradise (#16498, TBDT33) and the arrest number was [REDACTED]. On March 7, 2015, [REDACTED] went to court and was offered probation, but she requested to challenge the case. [REDACTED]

Off of the record, [REDACTED] stated that she did not seek medical treatment after this incident.

Officer Descriptions:

- PO1: 5’10”, athletic build, white male, 30 years old, brown hair, blue uniform
- PO2: 5’6”, skinny build, Asian male, plainclothes – brown winter/skull cap, hoodie, blue jeans
- PO3: 5’4”, black female, caramel complexion, blonde lock braids, blue uniform
- PO4: PO Paradise, 6’, heavy set, black female, light skin, no older than 30 years old, short bleached (wearing out)/blonde hair, brown eyes, blue uniform
- PO5: 5’4”, chubby build, Arab male, skin tone slightly darker than Inv. Patel’s, 40 years old, black hair, blue uniform
- PO6: no description
- PO7: no description
- PO8: no description
- PO9: no description

Alternate Contact:

[REDACTED]

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_____, _____ years old at the time of this interview, is a black female who is 5'5" tall, weighs 160 pounds, and has brown hair and brown eyes. _____ currently resides at _____ and is currently employed as a station agent _____.

On April 16, 2015, _____ was interviewed at the CCRB. _____ prefaced her statement by noting that she "didn't really remember" the incident.

On March 13, 2015, at approximately 1:35 p.m., _____, a station agent at booth number _____ on the "A mezzanine"/main floor of the Broadway Junction subway station in Brooklyn, saw a "huge crowd" of about 12 to 15 teenagers congregating on the paid side of the turnstiles. _____ noted that teens congregate and fight at Broadway Junction on a frequent basis and officers are usually present to control the crowds. Two young men were fighting and a crowd had gathered around them and watched. _____ believed that one of the young men was trying to jump someone. The crowd was behaving in a loud and rowdy manner and was anxious to see the fight unfold, possibly even "egging on" the fight. _____ was separated from the crowd by her Plexiglas booth and she could not hear much besides what was spoken into the microphone. She noted that she could hear through the Plexiglas if someone was yelling. Officers apprehended the two males that were fighting and the crowd crossed over from the paid side of the turnstiles to the unpaid side. Officers were attempting to get the teens to leave the station. _____ did not recall observing an officer telling the teens to return to the paid side through the emergency gate. Two females attempted to get return to the paid side, but a female officer (PO1) told them that they had to exit the subway system. One of the females (identified by the investigation as _____) opened the emergency gate and attempted to go through, but PO1 closed the gate before she could make it through the paid side. _____ did not see PO1 close the gate on _____ body and did not see an officer grab her head and slam it into a pole that supports the gate. PO1 grabbed _____ said, "You're gonna go out [of the station]," and shoved her towards the exit. _____ did not hear PO1 use any profanities and did not hear her say, "Pay your fare, bitch." She did not hear any officer use profanities at any point. Another female (identified by the investigation as Keair Bryant) approached PO1 and said, "That's my sister," interfering with the impending arrest. PO1 grabbed _____ and said, "You're gonna go out with her." _____ and _____ were "putting up a fight" and resisted PO1, pulling away from her. They were irate and using profanities. _____ did not see an officer pull _____ hair or punch her in the back of the neck. She did not remember _____ falling to the ground. _____ did not appear to be injured and _____ did not hear her complain of any injury. Two female officers (PO1, PO2) and a male officer said, "Get over here, put your hands behind your back." _____ and _____ were arrested simultaneously. There was a total of approximately eight officers present at the time. Some of these officers were with the males that were apprehended for fighting. _____ left the booth for the day at about 2:00 p.m. She did not exit the booth during the incident. By the time she left, everyone was gone. _____ did not see _____ after she was brought to the Transit Bureau District 33 stationhouse.

Analysis of Surveillance Footage:

- Angle 5, 13:35:25 – _____ recognized the female with the red bag as the one who attempted to go thru gate (_____) _____ was not sure if the female officer behind _____ (PO1) was the one that put her in cuffs, but noted that it was the one that approached her
- Angle 5, 13:45:29 – At the time of the incident, _____ did not see PO1 close the emergency gate on _____ body. _____ heard the gate close, but believed this was after they walked away from the gate. She did not remember what PO1 said to _____ after closing gate on her body.
- Angle 5, 13:45:17 – When _____ was asked if she saw the PO1 pull _____ hair, she said it looked like PO1 pulled the her jacket.
- Angle 12, 13:45:37 – _____ recognized _____. The officers brought _____ to the ground. _____ did not see any officer punch _____ or pull her hair
- Angle 1, 13:45:27 – _____ was not sure whether the girl with the teal pants and the maroon bag (_____) was the other girl that got arrested. _____ did not see any officer punching _____ or pulling her hair. _____ went to the ground at 13:45:43. All _____ saw in the video was the officer closing the door on her body.
- Angle 1, 13:45:51 – PO1 arrested _____
- Angle 1, 13:45:57 – _____ observed PO3.

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Officer Descriptions:

- PO1: 5'7", slender build, black female, 30 years old, black hair, brown eyes, plainclothes, TD 33, did not know name, grabbed/arrested female
- PO2: 5'7", medium build, black female, mid to late 20s, brown hair, brown eyes
- PO3: black male, no further description

Alternate Contact:



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PO Latoya Paradise, 31 years old at the time of this interview, is a black female who is 5'9" tall, weighs 120 pounds, and has black hair and brown eyes. On March 13, 2015, PO Paradise worked in uniform from 9:00 a.m. to 5:35 p.m. and was assigned to School Post 56 at Utica Avenue. She was working on foot with PO Gomez.

Memo Book Entries:

- 1240: 84 at TD33 re: 10-63 (lunch)
- 1330: 10-85 at Broadway Junction. Males fighting in upper mezzanine.
- 1335: 10-12 x 2
 - [REDACTED] – [REDACTED] – [REDACTED] – ID# [REDACTED] – DOB [REDACTED] – Black female, [REDACTED] years old – Trespass: A/O personally observed defendant enter and remain unlawfully in NYCTA after being told to leave by police officer. Notified mother [REDACTED] – [REDACTED] – DOB [REDACTED]
 - Juvenile arrest [REDACTED] – [REDACTED] – [REDACTED] – [REDACTED] – Black female – A/O did observe defendant enter and remain unlawfully in NYCTA after being told to leave by police officer. Defendant did disobey a lawful order and did enter TA system by walking through service exit gate and avoid legal payment of fare. Defendant did flail arm to prevent A/O from placing handcuffs on defendant.
- 1420: Notified mother – [REDACTED] – [REDACTED] – Arrest # [REDACTED] – Complaint # [REDACTED]
- 1520: [REDACTED] released to mother [REDACTED].

On April 17, 2015, PO Paradise was interviewed at the CCRB.

On March 13, 2015, at approximately 1:30 p.m., PO Latoya Paradise was on her lunch break at the Transit Bureau District 33 stationhouse in the Broadway Junction subway station in Brooklyn when officers in the stationhouse yelled that other officers needed assistance on the upper mezzanine (up the escalators), where a fight was occurring. PO Paradise did not recall which officer informed her of this situation. She and several other officers left the stationhouse and responded to the upper mezzanine. After the fight on the upper mezzanine was abated, a large crowd condition formed on the mezzanine in front of the main booth on the booth and the Transit Bureau District 33 stationhouse. Crowds were forming on both sides of the turnstiles. PO Paradise did not recall which side of the turnstiles more individuals were on, but stated that a total of about 20 people were on both sides. PO Paradise was not paying attention to the crowd and could not say what they were doing. [REDACTED] and [REDACTED] were both a part of this large crowd and were on the unpaid side of the turnstiles. PO Paradise's supervisor asked her to disperse the crowd. She did not recall who her supervisor was on this day. She noted that other officers were present at this time, but did not recall whom. PO Paradise told the crowd to get on a train or leave the station. She did not recall how many times she gave this order or if she gave it more than once. PO Paradise did not recall if anyone in the crowd complied. [REDACTED] and [REDACTED] were next to each other when she gave this order. PO Paradise later learned that they were related. She did not recall if [REDACTED] or [REDACTED] replied after she ordered them to leave the area and did not recall how far they were from her when she gave this order. PO Paradise did not recall how long [REDACTED] and [REDACTED] remained in the station before their arrests were effected. No officer present was ushering people through the emergency gate into the subway system and no officer gave verbal orders to anyone to go through the emergency gate. After [REDACTED] was asked to leave the area, she said, "Fuck the police, you all can die." PO Paradise did not recall if [REDACTED] was drawing a crowd or raising her voice at this point.

[REDACTED] and [REDACTED] remained in the subway system after being told to leave by PO Paradise. PO Paradise observed [REDACTED] successfully cross over to the paid side of the turnstiles through a service/emergency gate. The crowd had already dispersed before [REDACTED] went through the gate. PO Paradise did not recall how long after ordering [REDACTED] to leave the area that she walked through the gate. Immediately after [REDACTED] walked through the emergency gate, PO Paradise attempted to stop her and spoke to some other individuals on the paid side of the gate/turnstiles. PO Paradise did not recall where she and [REDACTED] were when [REDACTED] was placed under arrest and did not recall if she gave any commands to [REDACTED] before she was placed under arrest (aside from ordering her to leave the area). PO Paradise reached out to grab [REDACTED] but was unable to do so. [REDACTED] resisted arrest my moving about within the station and running away from the officers. [REDACTED] was ultimately arrested before [REDACTED]. Officers had to assist PO Paradise in effecting [REDACTED] arrest, but PO Paradise did not recall who these officers were. No physical force had to be used in order to apprehend [REDACTED] except to restrain her in handcuffs. No force had to be used to apply the handcuffs.

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Another officer whom PO Paradise could not recall handcuffed [REDACTED]. PO Paradise did not recall how many officers assisted in handcuffing [REDACTED]. [REDACTED] resisted being cuffed by flailing her arms and moving them away from the officers. PO Paradise did not recall if [REDACTED] offered any other resistance besides running away and flailing her arms. She did not recall if [REDACTED] was taken to the ground. [REDACTED] was arrested for going through the emergency gate and remaining in the station after being told to leave. [REDACTED] was arrested for trespassing because she also remained in the station after being ordered to leave. [REDACTED] was standing on the mezzanine and did not go through the emergency gate.

PO Paradise processed [REDACTED] arrest in the Transit Bureau District 33 stationhouse. [REDACTED] was not placed in a cell because the cells were full with other prisoners who were previously apprehended as a result of the fight on the upper mezzanine. She was instead placed in an office that the officers use that is not normally used for arrestees. PO Paradise did not lodge [REDACTED] in this room, but she was with [REDACTED] in this room at one point. She did not recall if officers were stationed in this office. [REDACTED] did not appear to be injured, did not complain of any injuries, and did not request medical treatment. [REDACTED] did not request an ice pack from PO Paradise and PO Paradise was unaware of [REDACTED] requesting an ice pack from any other officer. No officer informed PO Paradise that [REDACTED] was injured.

PO Paradise did not slam [REDACTED] head into a fence or pole, push her in the back of her head, or close the emergency gate on her body. Neither PO Paradise nor any other officer used profanities towards [REDACTED] or towards anyone else at any point. PO Paradise did not say, "Pay your fare, bitch," towards [REDACTED]. PO Paradise did not pull [REDACTED] hair or punch her in the back of her neck.

Analysis of Surveillance Footage:

- Camera Angle 5 (Showing the emergency gate)
 - 13:41:23
 - PO Paradise did not recognize black female officer with blonde hair that ushered people through the emergency gate and did not see this occur. PO Paradise did not observe any people walk through the emergency gate prior to [REDACTED] doing so.
 - 13:45:25
 - PO Paradise recognized girl with the red bag as [REDACTED] and recognized officer behind [REDACTED] as herself. When asked if she gave any other commands to [REDACTED] besides to leave the station, PO Paradise read verbatim from her memo book
 - 13:45:28
 - PO Paradise did not recall closing the emergency gate on [REDACTED] body, as depicted in the video. She stated that she shut the gate because she tripped and was catching her balance. She did not intend to close the gate on [REDACTED] body. When asked to point out the moment when she tripped, PO Paradise identified a frame at 13:45:28 when her right leg crossed over her left.
 - 13:45:29
 - PO Paradise's arm makes contact with [REDACTED] left shoulder. PO Paradise stated that she did not grab [REDACTED] hair.
 - 13:45:31
 - PO Paradise did not recognize the individual with the pink bag and the blue/green pants and did not recall what [REDACTED] was wearing that day.
 - 13:45:32
 - PO Paradise did not recall what she was saying to [REDACTED] at this point.
- Camera Angle 12 (Showing the turnstiles from the paid side of the mezzanine)
 - 13:45:40 –
 - PO Paradise did not recognize the individual with the red bag as [REDACTED] and did not recall whether [REDACTED] was ultimately arrested by the turnstiles. PO Paradise could not identify who the officer that was that was grabbing [REDACTED] right arm was because the footage was blurry.

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- Camera angle 1 (Showing the turnstiles from the non-paid side of the mezzanine)
 - 13:45:31
 - PO Paradise did not recognize [REDACTED] or any of the officers because the footage was too blurry. PO Paradise was not aware of any officer pulling or making contact with [REDACTED] hair. PO Paradise did not recall any officer punching [REDACTED] neck. The video did not refresh PO Paradise's recollection of [REDACTED] being taken to the ground as it depicts. PO Paradise did not recall if any other commands were given to [REDACTED] at this point.